



Haverhill

Economic Development and Planning
Phone: 978-374-2330

To: City Council

From: Jacki Byerley, AICP, Planning Director

Re: Amend Chapter 255 Zoning Ordinance and Appendix A Table 1: Table of Use and Parking Regulations

Date: September 10, 2026

The Planning Department is submitting the attached proposed amendments to Chapter 255, Zoning, for City Council review and consideration. Planning has worked with the Building Commissioner and City Solicitor to develop the requested revisions.

The proposed amendments are intended to clarify and update the Zoning Ordinance. The major revisions include:

- Administrative and Development Review: Updating references throughout the ordinance to the Planning Director or designee and clarifying responsibilities.
- Signs: Clarifying that an establishment may have a maximum of two wall signs, provided they are mounted on and face different sides of the building.
- Parking: Updating minimum parking-space dimensions, allowing a limited number of compact spaces and replacing the existing parking diagrams to reflect the 9x18 parking dimension. Along with clarifying parking and loading standards for five contiguous spaces and extending the exemption of backing into a street to a three-family dwelling.
- Residential Accessory Storage: Clarifying the requirements and limitations for the exterior storage of trailers, unregistered automobiles, campers and boats in residential districts.
- PDD Rezoning and Application Submissions: Removing fee amounts and applications submission requirements from the ordinance to reference the Council's application procedures.
- Performance Guarantees: Clarifying acceptable forms of performance guarantees.
- Consolidated Permitting: Updating the ordinance to address Consolidated Local Permits and small clean energy infrastructure, including the development review and pre-filing municipal meeting process.
- Special Permits: Extending the special permit lapse period to 36 months from 24 months.
- Nonconforming Structures and Uses: Clarifying provisions governing alterations to nonconforming structures and increasing the abandonment period for a nonconforming use or structure from two years to four years before protected status is lost.
- Definitions: Adding definitions for "Performance Guarantee" and "Data Center."

Appendix A – Table of Use and Parking Regulations

The proposed amendments also include several changes to Appendix A, Table 1 – Table of Use and Parking Regulations. These revisions are intended to make the table consistent with the proposed ordinance changes and clarify where certain uses are permitted.

Specifically, the table would:

- Add “Data Center” as a new use. The proposed table identifies the use as prohibited in all zoning districts establishing a clear zoning classification for this use.
- Revise the regulations for large family day-care homes, changing the current special-permit designation to allowed (Y) in the applicable districts.
- Update the accessory storage provisions in the table to correspond with the proposed revisions to Section 3.2.2.2, clarifying the treatment of trailers, unregistered automobiles, and boats as accessory storage.
- Make related corrections and updates to the use table so that the table reflects the terminology and requirements contained in the amended ordinance.
- Removing the special permit requirement for a three-family in the RU Zoning District.

The attached ordinance identifies the proposed revisions through strikeout for language to be removed and for new language to be bolded and underlined. The proposed Appendix A table is included as a separate attachment for ease of review.

If possible, I respectfully request that the City Council schedule these proposed zoning amendments for a public hearing on October 27, 2026, to allow for public review and comment.

Thank you for your consideration,


Jacki Byerley
Planning Director

AN ORDINANCE RELATING TO ZONING

BE IT ORDAINED by the City Council of the City of Haverhill that Chapter 255, Zoning, of the code of the City of Haverhill, as amended, being and is hereby further amended as follows (~~strike out~~ removed and **bold and underline** new)

First:

- A. Section 8.3.7.5 first sentence shall be amended as follows:

Lottery or tenant selection agent. The applicant for an inclusionary development project shall engage a DHCD and City of Haverhill Office of Economic Development and **Planning** approved lottery agent for homeownership units who shall ensure affirmative marketing and compliance with income requirements as well as DHCD requirements for maximum housing purchase price for affordable housing units.

- B. Section 8.3.9.4, second sentence shall be amended as follows:

No building permit shall be issued until an approved regulatory agreement is recorded at the Registry of Deeds and the Building Commissioner is notified by the **Planning** Director ~~of the Office of Economic Development and Planning~~ or **its** his/her **designee** representative that the project is progressing in a satisfactory manner in fulfilling its affordable housing requirement.

- C. Section 8.3.10, first paragraph fourth sentence shall be amended as follows:

No building permit for an inclusionary development project shall be issued unless the ~~Director of the Office of Economic Development and Planning~~ **Planning Director or designee** has determined that the applicant's affirmative marketing plan satisfies these requirements.

- D. Section 9.3.10.1 third sentence shall amended as follows:

The location and design of any pathways/walkways, open space, or parks shall be approved by the **Planning Director or its designee** ~~Economic Development Director~~ and in keeping with the City's rail trail design.

- E. Section 9.3.12.1 second sentence shall be amended as follows:

The size and design of the park must be approved by the **Planning** ~~Economic Development~~ Director **or its designee.**

- F. Section 9.3.12.2.b second sentence shall be amended as follows:

The size and design of the park must be approved by the **Planning** ~~Economic Development~~ Director **or its designee**.

- G. Section 9.3.12.2.c third sentence shall be amended as follows:

The use must be approved by the **Planning** ~~Economic Development~~ Director **or its designee**.

- H. Section 9.3.12.4 second sentence shall be amended as follows:

The area, location, and amenities included in the park must be approved by the **Planning** ~~Economic Development~~ Director **or its designee**.

- I. Section 9.3.12 shall be amended as follows:

Any off-street parking required by this section in Sub-Zone E for any building or use may be included as part of any off-street parking area similarly required for another building or use on the same site only when the type of buildings or uses indicate that the usage of such parking area would not occur simultaneously, as determined by the **Planning** ~~Economic Development~~ Director **or its designee**.

- J. Section 9.3.18.3.b.2.i shall be amended as follows:

Any other information which may include required traffic, school, and/or utilities impact study and in order to adequately evaluate the scope and potential impacts of the proposed project if deemed necessary by the **Planning** ~~Economic Development~~ Director **or its designee**.

- K. Section 9.3.19.1.a second sentence shall be amended as follows:

The applicant shall also file 20 copies of the application and the other required submittals with the **Planning** ~~Economic Development~~ Director **or its designee** on behalf of the PAA.

- L. Section 9.3.19.1.c shall be amended as follows:

An applicant for by-right (site plan review - minor) plan approval shall file the application and all required submittals with the **Planning** ~~Economic Development~~ Director **or its designee**.

- M. Section 9.3.19.2.a shall be amended as follows:

Upon receipt of the application for special permit plan approval or by-right (site plan review - major) plan approval, the City Clerk shall immediately provide a copy of the application materials to the City Council, the Planning Board, the Board of Appeals, the Board of Health, the Conservation Commission, the Fire Department, the Police Department, the Building Commissioner, the Department of Public Works, the Planning ~~Economic Development~~ Department, and the Community Development Division. Furthermore, the ~~Economic Development~~ Planning Director or City Clerk may obtain comments pertaining to design from an architect if deemed necessary by the ~~Economic Development~~ Planning Director. Any such board, agency, or officer shall provide written comments within 60 days of its receipt of a copy of the plan and application for approval, or within 30 days of such receipt in the case of a preferred project. Furthermore, the Planning ~~Economic Development~~ Director shall determine within 10 days of receipt of either a by-right or special permit application whether the project described in the application constitutes a preferred project and shall inform the applicant of such.

N. Section 9.3.19.2.b shall be amended as follows

In the case of a by-right (site plan review - minor) plan approval, the Economic Development Director shall immediately provide a copy of the application materials to the Board of Health, the Conservation Commission, the Fire Department, the Police Department, the Building Commissioner, the Department of Public Works, the ~~Economic Development~~ Planning Department, and the Community Development Division. Furthermore, the Planning ~~Economic Development~~ Director or City Clerk may obtain comments pertaining to design from an architect if deemed necessary by the P l a n n i n g ~~Economic Development~~ Director. The departments shall provide comment within 30 days or, in the case of a preferred project, within 15 days. Furthermore, the Planning ~~Economic Development~~ Director or its designee shall determine within 10 days of receipt of the application materials whether the project described in the application constitutes a preferred project and shall inform the applicant of such.

O. Section 9.3.21.1 shall be amended as follows:

Minor Change. After either by-right or special permit plan approval, an applicant may apply to make minor changes involving minor utility or building orientation adjustments, lighting or facade adjustments, or minor adjustments to parking, landscaping, or other site details that do not affect the overall massing, final build-out or building envelope of the site and do not materially affect the open space from that shown on the previously approved site plan and do not increase the number of dwelling units in the project in the aggregate form that was provided in the original plan approval. Plans showing such minor changes and an application must be submitted to the Planning ~~Economic Development~~ Director. The Planning ~~Economic Development~~ Director or its designee shall make a determination as to whether the changes constitute a minor change and may authorize such changes, in writing, to the applicant. The Planning ~~Economic Development~~ Director or its designee shall set forth any decision to approve or deny such minor changes, in writing,

within 30 days after the applicant has filed its application and shall provide a copy of its decision to the applicant for filing with the City Clerk.

P. Section 9.3.21.2 shall be amended as follows:

Major Change. Those changes deemed by the Planning ~~Economic Development~~ Director, or its designee to constitute a major change because of the nature of the change in relation to the prior approved plan or because such change cannot be appropriately characterized as a minor change as described above, shall be processed by the PAA as a new application for by-right (site plan review - major) approval or special permit plan approval pursuant to this article.

Second:

A. Section 6.2.7 Title shall be amended as follows:

Signs Permitted in Any R ~~or S~~ District.

B. Section 6.2.8.1

Wall Signs (Accessory). ~~One wall sign for each building frontage of each establishment shall be permitted. A maximum of two wall signs shall be permitted for each establishment, provided that the signs are mounted on and face different sides of the building (front, sides, or rear).~~ Such Each wall sign shall not exceed a maximum area of 40 square feet per building frontage in any CN District, or a maximum sign area of 120 square feet per building frontage in a CG District, or a maximum sign area of 120 square feet per building frontage in any CH District.

C. Section 6.2.9 Title shall be amended as follows:

Signs Permitted in Any I B District

D. Section 8.5.5.1 shall be amended as follows:

Submission Fee. The SPGA shall specify submission fees in the application requirements as adopted from time to time and set forth in the application procedures and ~~for a PDD District rezoning in its rules and regulations. In no case shall the fee be less than \$850.~~ The required fee shall be submitted with the rezoning request and preliminary plan.

E. Section 8.5.6 shall be amended as follows:

All documents must be submitted to the SPGA in accordance with the rules and regulations of the SPGA. ~~no later than two business days prior to meetings at which the amendment will be considered. Fifteen copies shall be submitted. Documents shall also be made available electronically for access by the general public.~~

F. Section 9.3.19.1 shall be amended as follows:

1. Filing.

- (a) An applicant for special permit plan approval or by-right (site plan review - major) shall file ~~30 copies of~~ the application and all required submittals, including notice of the date of filing, with the City Clerk on behalf of the PAA **in accordance with the Rules and Regulations of the SPGA.**
- (b) An applicant for by-right plan (site plan review - minor) approval shall file the application and all required submittals, including notice of the date of filing, with the City Clerk **in accordance with the Rules and Regulations of the SPGA.** The applicant shall also file 20 copies of the application and the other required submittals with the Economic Development Director on behalf of the PAA.
- (c) An applicant for by-right (site plan review - minor) plan approval shall file the application and all required submittals **in accordance with the Rules and Regulations of the SPGA** with the Economic Development Director.

Third

A. Section 3.2.2.2 shall be amended as follows:

Trailer, Automobile, or Boat.

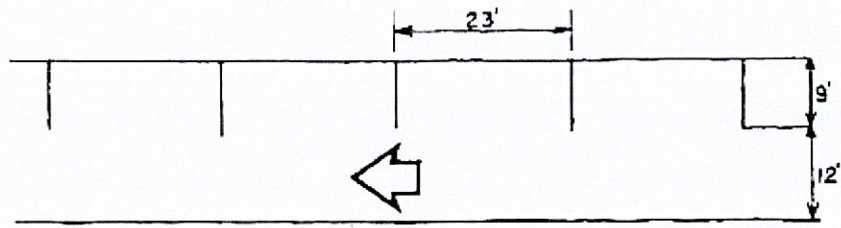
- a. **In any residential district accessory exterior the** Accessory storage of **no more than of the following unregistered items;** one trailer, **or** one unregistered automobile and/or one boat shall be allowed as per Table 1.
- b. **In any residential district accessory exterior storage of a camper or trailer or boat so long as not more than three of any combination of the foregoing shall be permitted .**

B. Section 6.1.4 shall be amended as follows:

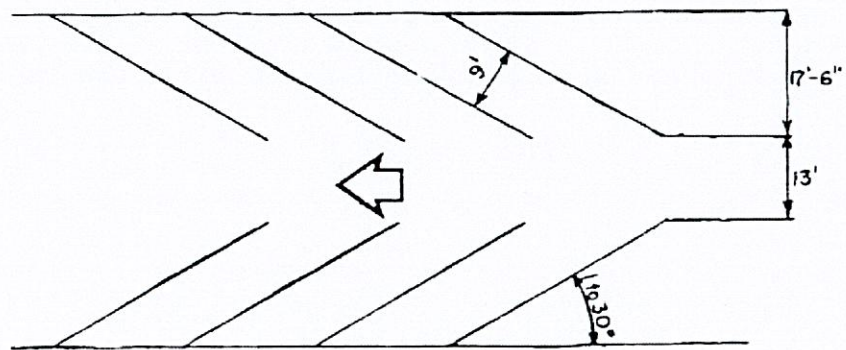
Off-street parking areas shall be **include standard spaces no smaller than 9 feet wide by 18 feet long and may include 10% of the total required spaces designed for compact cars no smaller than 8 feet wide by 16 feet long and further the spaces shall be** designed to comply with one or a combination of the following minimum standards.

And delete the existing diagrams numbered 1-5 and replace with the following:

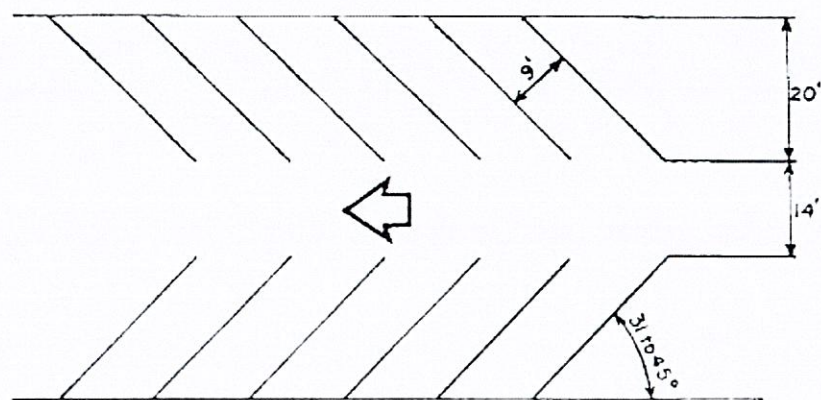
1. Parallel parking.



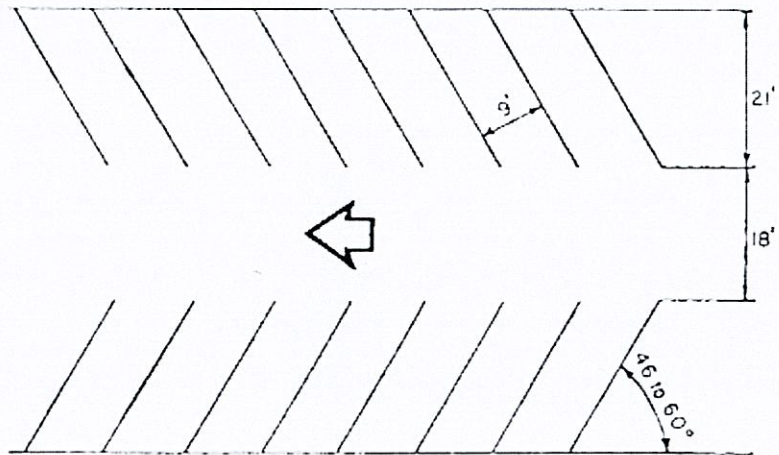
2. One- to thirty-degree angle parking.



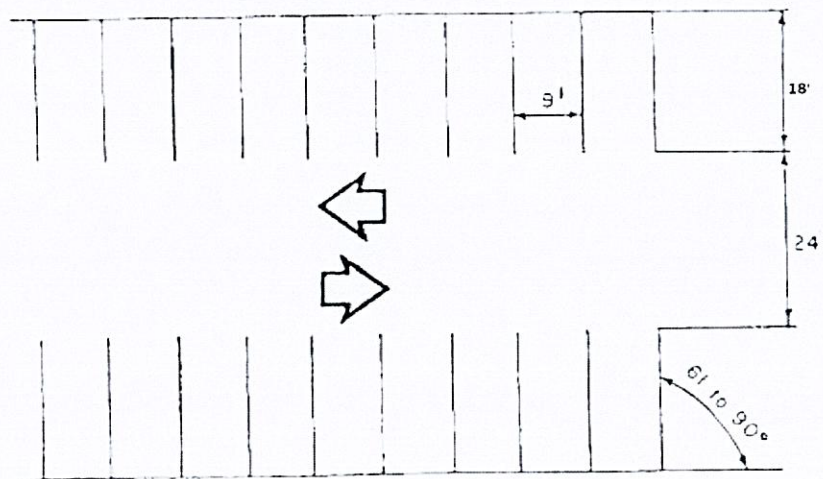
3. Thirty-one- to forty-five-degree angle parking.



4. Forty-six- to sixty-degree angle parking.



5. Sixty-one- to ninety-degree angle parking.



C. Section 6.1.16 first paragraph shall be amended as follows:

All parking and loading areas containing over five contiguous spaces, including automotive and drive-in establishments of all types, shall be either contained within structures, or subject to the following:

D. Section 6.1.12.7 shall be amended as follows:

Parking and loading spaces other than those required for single, ~~and~~ two-family and three-family dwellings shall be so arranged as not to permit backing of automobiles onto any street.

E. Section 7.2.8.1 shall be amended as follows:

Before an applicant may remove sand, gravel, minerals or other earth materials from a site under a permit granted by the Board of Appeals for that purpose, there must be in effect a performance guarantee which may be in the form of a tripartite agreement, savings account or surety bond held by ~~with~~ the City Treasurer of not less than \$3,000 per acre to be excavated under the permit. The bond may not be terminated unless 30 days' written notice of intent to terminate has been given to the City Treasurer and to the Board of Appeals and Conservation Commission and the Board of Appeals has voted to release such guarantee bond.

Fourth: The following is in relation to the requirements of Consolidated Permitting:

A. 10.1.3 Other Approvals Required.

Where authorization of a use of land or of a structure is required by the Board of Appeals or City Council, a copy of such written authorization shall be sent by the Clerk of the Board or Council to the Building Commissioner within 14 days of granting of approval and shall be received by the Building Commissioner prior to the issuance of a permit. **If an applicant for a building permit has applied for a Consolidated Local Permit under 225 CMR 29.00, a building permit shall not be issued unless the Consolidated Local Permit has been granted.** In addition, the Building Commissioner in such cases where the Board or Council has granted a limited or conditional zoning variance or special permit shall not issue a permit until the applicant submits an affidavit from the Essex County Registry of Deeds that such authorization of the Board or Council has been recorded. Furthermore, the Building Commissioner shall not issue a permit where approval by the Mayor, State Department of Natural Resources and the State Department of Public Works for the filling of wetlands; and/or a certificate of appropriateness from the Historic District Commission, if and when required; and/or a covenant or offer for

acceptance of open space, until these requirements are met in writing, **or if a Consolidated Local Permit under 225 CMR 29.00 has been denied.** Authorization for a permit shall be null and void if the applicant has not obtained his permit from the Building Commissioner after one year from the date of approval of his application by the City Council or the Board.

B. 10.1.4 Development Review.

1. In addition to plans and drawings required for submission under regulations of the Building Code or this chapter, all applications for building permits for 1) new construction of a single-family home, or 2) change of use in an existing structure, or 3) any new construction of a multifamily, commercial, or business structure, or 4) the development of three or more parking spaces, **or 5) small clean energy infrastructure or facilities subject to a Consolidated Local Permit and as defined under 225 CMR 29.00** shall be submitted to the Building Commissioner accompanied by evidence required by the City departments set forth below (the "City departments"). This process shall be called "development review." Approval shall be required, when applicable, from the following City departments:

a. Water and Sewer Departments.

b. Fire Chief.

c. Police Chief.

d. City Engineer.

e. Health Department.

f. Conservation Commission.

g. Planning Department

2. The purpose of this development review is to ensure, prior to issuance of a building permit, that the proposed development or site alterations will comply with the State Building Code, other state laws and regulations, this chapter (including the performance standards set forth in § **6.3**), and public safety standards. If, in the opinion of the relevant City departments, the work proposed deviates from the standards set forth above, the SPGA or the Building Commissioner may deny the application for a building permit or other work. Each City department shall conduct its review within 45 days and report to the applicant and the Building Commissioner in writing, **except for small clean energy infrastructure or facilities subject to a Consolidated Local Permit, which shall be subject to the processes under 225 CMR 29.00, including a pre-filing municipal meeting with the departments listed above, where applicable. The purpose of the pre-filing municipal meeting is for the Applicant and the City to:**
(a) Verify basic project and site information, including zoning information, known areas subject to state or local environmental laws, and any other areas, structures, or buildings of cultural or historical significance that could be impacted by the project;

- (b) Identify to the best extent possible all needed decisions and permits from the Local Government;**
- (c) Identify, to the best extent possible, any applicable local bylaws and processes;**
- (d) Identify, to the best extent possible, any other potential permitting, design, or engineering obstacles or items of concern that might hinder the Applicant's ability to secure all needed decisions within the 12-month approval timeframe; and**
- (e) Discuss dates, times, and locations for an information session, if applicable.**

Fifth:

- A. Section 10.4.6 Lapse, shall be amended as follows:

Special permits shall lapse if a substantial use thereof or construction thereunder has not begun, except for good cause, within **36** 24 months following the filing of the special permit approval (plus such time required to pursue or await the determination of an appeal referred to in MGL c. 40A, § 17, from the grant thereof) with the City Clerk.

- B. Section 11.1 shall be amended by adding the following definition in the appropriate alphabetical order:

Performance Guarantee – a surety bond, saving account, tripartite agreement, covenant or other similar financial surety in an amount required by the provisions of this Ordinance.

Sixth:

- A. Section 5.5.3 shall be amended as follows:

Alteration to a structure which encroaches upon one or more required yard or setback areas, where the alteration will comply with all current setback, yard, building coverage and building height requirements **or where there is either a horizontal or vertical extension along the same non-conforming side or rear setbacks or if there is an intensification of lot coverage.**

In the event that the Building Commissioner determines that the nonconforming nature of such structure would be increased by the proposed reconstruction, extension, alteration, or change, the Board of Appeals may, by special permit, allow such reconstruction, extension, alteration, or change where it determines that the proposed modification will not be substantially more detrimental than the existing nonconforming structure to the neighborhood.

- B. Section 5.6 shall be amended as follows:

A nonconforming use or structure which has been abandoned, or not used for a period of ~~two~~ **four** years, shall lose its protected status and be subject to all of the provisions of this zoning by-law; provided, however, that such use or structure may be restored to its protected status by special permit from the City Council.

Seventh:

Section 11.1 Add the following new definition in alphabetical order:

Data Center: A physical facility or building use to house computer systems, servers, and associated components for storing, processing, and distributing digital information.

Eighth:

Appendix A, Table 1: Table of Use and Parking Regulations should be amended as set forth on the attached table:

ZONING

255 Attachment I

APPENDIX A
TABLE 1: TABLE OF USE AND PARKING REGULATIONS

[Amended 8-8-1972 by Doc. 197; 8-14-1973 by Doc. 188; 9-17-1974 by Doc. 210-C; 8-12-1975 by Doc. 160-C; 10-12-1976 by Doc. 135-C; 3-22-1977 by Doc. 8-C; 6-6-1978 by Doc. 103-C; 12-18-1979 by Doc. 270-C; 6-10-1980 by Doc. 89-C; 1-12-1982 by Doc. 206-C; 5-11-1982 by Doc. 94; 5-24-1983 by Doc. 65-B; 8-23-1983 by Doc. 56-E; 12-27-1983 by Doc. 184-C; 6-10-1992 by Doc. 52-C; 6-14-1994 by Doc. 59-B; 4-25-1995 by Doc. 48-B; 10-27-1998 by Doc. 128-B; 6-27-2000 by Doc. 79-L; 1-23-2001 by Doc. 137-B; 8-14-2001 by Doc. 97-CC; 8-26-2003 by Doc. 104-B; 4-27-2004 by Doc. 42-B; 2-8-2005 by Doc. 159-B; 3-22-2005 by Doc. 26-B; 6-28-2005 by Doc. 81-B (as corrected 6-27-2006); 10-18-2005 by Doc. 137-B; 2-28-2006 by Doc. 19-BB; 6-10-2008 by Doc. 61-B; 3-9-2010 by Doc. 4-B; 8-10-2010 by Doc. 17-CGG; 6-11-2013 by Doc. 62-B; 8-25-2015 by Doc. 99-B; 1-30-2018 by Doc. 130-B; 3-12-2019 by Doc. 25; 3-12-2019 by Doc. 25-B; 11-10-2020 by Doc. 40-B; 5-10-2022 by Doc. 41-B; 3-18-2025 by Doc. 2-B; 3-18-2025 by Doc. 4-B; 3-18-2025 by Doc. 15-B]

Table of Abbreviations:
Y = Allowed
N = Prohibited
BA = Allowed with Special Permit by Board of Appeals
CC = Allowed with Special Permit by City Council

A. RESIDENTIAL USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. One-family detached dwelling	Y	Y	Y	Y	Y	Y	N	N	N	N	N	N	N	N	A
2. Two-family dwelling	N	N	N	N	Y	Y	N	N	N	N	N	N	N	N	A
3. Three-family dwelling	N	N	N	N	CC	CC	N	N	CC	N	N	N	N	N	K
4. Multifamily dwelling	N	N	N	N	CC	CC	CC	N	CC	CC	N	N	S	N	K ¹
5. Flexible development	CC	CC	CC	CC	N	N	CC	N	N	N	N	N	N	N	A
6. Lodging, boarding, or rooming house	N	N	N	N	BA	BA	N	N	BA	BA	N	N	BA	N	A
7. Congregate care housing	CC	CC	CC	CC	CC	CC	N	N	N	N	CC	N	N	N	J
8. Fraternity or sorority housing, off campus	N	N	N	N	BA	BA	N	N	BA	N	N	N	N	N	A
9. Bed-and-breakfast establishment	N	CC	CC	CC	CC	CC	Y	Y	N	CC	N	N	N	N	L
10. Long-term care facility	N	CC	N	CC	CC	CC	N	CC	CC	CC	Y	N	CC	N	Q
11. Assisted living residence	N	CC	N	CC	CC	CC	N	CC	CC	CC	Y	N	CC	N	Q
12. Expansion of a residential dwelling to contain up to 6 dwelling units where no exterior structural changes are required	N	N	N	N	BA	A	N	N	BA	BA	N	N	N	N	A
13. Accessory dwelling unit	Y	Y	Y	Y	Y	Y	SP	SP	SP	SP	SP	SP	SP	SP	SP

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B. COMMUNITY USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. Museum	BA	BA	BA	BA	BA	BA	Y	Y	Y	Y	N	Y	Y	BA	D
2. Historical association or society	BA	BA	BA	BA	BA	Y	Y	Y	Y	Y	N	Y	Y	N	E
3. Use of land or structures for religious purposes on land owned or leased by a religious sect or denomination	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	H
4. Use of land or structures for educational purposes on land owned or leased by the Commonwealth or any of its agencies, subdivisions or bodies politic or by a religious sect or denomination or by a nonprofit educational corporation	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	I,M
5. Child-care center	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	O,—
6. City governmental building, unless otherwise specified	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	E
7. City auditorium	N	N	N	N	BA	BA	N	Y	Y	Y	N	Y	Y	N	H
8. City equipment garage	BA	N	N	N	N	N	N	Y	Y	Y	N	N	Y	Y	F
9. City or nonprofit cemetery, including crematorium therein	BA	Y	Y	Y	Y	Y	N	N	N	Y	N	N	N	N	None
10. City parking lot or structure	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
11. Essential services	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
12. Private utility, overhead transmission line (15 kilovolts or over), substation, transformer station or similar facility or building	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	N	BA	BA	BA	None
13. Power plant, sewage treatment plant, refuse facility and solid waste disposal facility as defined in MGL c. 16, s. 18, and assigned under the provisions of MGL c. 111, s. 150A	CC	CC	N	N	N	N	N	N	N	N	N	N	Y	Y	O
14. Hospital	BA	BA	N	N	BA	BA	N	N	BA	BA	Y	N	BA	CC	R
15. Psychiatric hospital or clinic	N	N	N	N	CC	CC	N	N	CC	CC	Y	CC	N	N	R
16. Privately operated detention center or jail	N	N	N	N	N	N	N	CC	N	CC	N	N	N	N	R,O
17. Drug or alcohol rehabilitation facility	N	N	N	N	CC	CC	N	N	CC	CC	Y	N	N	N	R
18. Safe injection facility	N	N	N	N	N	N	N	N	N	N	N	N	N	N	

ZONING

C. AGRICULTURAL USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. Agriculture, exempt	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	None
2. Raising and keeping of livestock, horses and poultry, not including the raising of swine or fur animals for commercial use, nonexempt	BA	Y	Y	N	N	N	N	N	N	N	N	N	N	BA	None
3. Commercial stable, nonexempt	BA	Y	N	N	N	N	N	BA	N	N	N	N	N	N	D
4. Greenhouse or stand for wholesale and retail sale of agricultural or farm products raised primarily on the same premises, exempt	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	S
5. Greenhouse or stand for wholesale and retail sale of agricultural or farm products raised primarily on the same premises, nonexempt	Y	Y	Y	N	N	N	Y	Y	Y	N	N	N	N	N	S
6. Nursery, including outdoor storage, nonexempt	N	N	N	N	N	N	N	Y	Y	Y	N	N	N	N	D

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D. RECREATIONAL USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. Indoor recreation facility operated by governmental unit	CC	CC	CC	CC	CC	Y	CC	Y	Y	Y	N	Y	CC	CC	F
2. Outdoor recreation facility operated by governmental unit	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
3. Golf course and associated clubhouse	Y	Y	Y	Y	Y	Y	N	N	N	N	N	N	N	N	B
4. Hunting club and/or target range (rifle, pistol, shotgun and/or bow), subject to the standards specified by the National Rifle Association	BA	BA	N	N	N	N	N	N	N	N	N	N	N	N	T
5. Tennis club, swim club and/or fishing club, outdoor except for accessory buildings	BA	BA	N	N	BA	BA	Y	Y	Y	Y	N	Y	N	N	T
6. Nonprofit day camp or other nonprofit camp	BA	BA	N	N	N	N	N	N	N	N	N	N	N	N	G
7. Noncommercial forestry and growing of all vegetation	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
8. Recreational facility (indoor and operated for profit or nonprofit, including such items as stadium, race track, sports pavilion, etc.), unless otherwise specified	N	N	N	N	N	N	N	CC	CC	CC	N	CC	CC	CC	E
9. Health/fitness club (indoor athletic and exercise facility)	N	N	N	N	N	N	Y	Y	Y	Y	Y	N	Y	N	D

ZONING

E. OFFICE USES		RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1.	Office, general or business	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	Y	E
2.	Bank and other financial institution	N	N	N	N	N	N	Y	Y	Y	Y	Y	Y	Y	N	D
3.	Office, professional	N	N	N	N	N	BA	Y	Y	Y	Y	N	Y	Y	Y	D,E
4.	Office, medical or dental office or clinic	N	N	N	N	N	BA	Y	Y	Y	Y	Y	Y	Y	Y	C

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F. RETAIL AND SERVICE USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. General retail and business, business and/or consumer service establishments, unless otherwise specified (See auto-oriented and/or bulk storage activities, and entertainment, eating and/or drinking establishments)	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y	N	C
2. Retail use in excess of 50,000 square feet of gross floor area	N	N	N	N	N	N	CC	Y	CC	CC	N	N	N	N	C
3. Convenience retail	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y	N	C,D
4. Personal service establishment	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	C
5. Health care services	N	N	N	N	N	N	N	N	N	N	Y	N	Y	Y	C
6. Heating and air conditioning, sales and installation	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	E
7. Antique sales	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y	N	D
8. Furniture sales	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	D,—
9. Furniture, nonretail	N	N	N	N	N	N	N	N	N	N	N	N	N	Y	D
10. Landscaping and gardening equipment, retail sales (no outdoor storage)	N	N	N	N	N	N	N	Y	Y	Y	N	N	N	N	D
11. Lumber and/or building materials sales	N	N	N	N	N	N	N	BA	BA	N	N	N	Y	Y	G
12. Miscellaneous business machines, computer and equipment repair service	N	N	N	N	N	N	N	Y	Y	Y	N	N	BA	Y	E
13. Monument and tombstone sales	N	N	N	N	N	N	N	BA	BA	N	N	N	N	N	F
14. Sales by vending machine as principal use	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	U
15. Swimming pools and related equipment sales	N	N	N	N	N	N	N	Y	Y	N	N	N	BA	N	E
16. Body art establishment, subject to compliance with Board of Health Regulations	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	Y	C

ZONING

	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
G. EATING, DRINKING, AND ENTERTAINMENT ESTABLISHMENTS															
1. Restaurant, coffee shop, diner, luncheonette, and sandwich shop, without drive-through	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y	N	V
2. Restaurant, coffee shop, diner, luncheonette, and sandwich shop, with drive-through	N	N	N	N	N	N	N	Y	N	N	N	N	Y	N	W
3. Amusement facility and/or amusement park and/or amusement arcade (except in the CBD)	N	N	N	N	N	N	N	BA	BA	N	N	N	BA	BA	B
4. Cocktail lounge or bar, with no live entertainment and/or dancing *Special permit from BA required in Washington Street Historic District	N	N	N	N	N	N	BA	Y	Y	Y*	N	N	Y	N	V
5. Cocktail lounge or bar, with live entertainment and/or dancing	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	V
6. Cafeteria	N	N	N	N	N	N	Y	Y	Y	Y	Y	N	Y	N	V
7. Dairy bar, without drive-through	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y	N	V
8. Dairy bar, with drive-through	N	N	N	N	N	N	N	Y	N	N	N	N	N	N	W
9. Membership club, lodge or society	N	N	N	N	N	N	N	Y	Y	Y	N	N	CC	N	V
10. Motion picture or theatre establishment, indoor	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	V
11. Motion picture or theatre establishment, outdoor	N	N	N	N	N	N	N	Y	N	N	N	N	Y	N	None, Y
12. Pool hall	N	N	N	N	N	N	N	N	Y	Y	N	N	Y	N	D
13. Bowling alleys	N	N	N	N	N	N	N	Y	Y	Y	N	N	BA	N	X
14. Adult use (see § 7.9)	N	N	N	N	N	N	N	N	CC	N	N	N	CC	N	C

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	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
H. MOTOR VEHICLE AND MARINE RELATED USES															
1. Motor vehicle station (fuel/service station), not to include the sale of more than 1 vehicle at any one time	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	Y	C
2. Motor vehicle body and paint shop (no outdoor storage of equipment or parts and not to include the sale of more than 1 vehicle at any one time)	N	N	N	N	N	N	N	Y	BA	BA	N	N	N	N	D
3. Motor vehicle dealer, new and/or used, sales and/or rentals, includes usual motor vehicle body and repair services	N	N	N	N	N	N	N	CC	CC	CC	N	N	CC	N	E
4. Motor vehicle garage (general repairs, no outdoor storage of equipment or parts and not to include the sale of more than 1 vehicle at any one time)	N	N	N	N	N	N	N	Y	Y	Y	N	N	N	N	D
5. Motor vehicle supplies, parts and accessories, retail sales (no outdoor storage)	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	E
6. Motor vehicle wash	N	N	N	N	N	N	N	Y	Y	N	N	N	Y	N	F
7. Motorcycle sales and service	N	N	N	N	N	N	N	Y	BA	N	N	N	N	N	F
8. Mobile home and/or trailer sales and/or rental (not to be occupied on the site)	N	N	N	N	N	N	N	Y	BA	N	N	N	N	N	E
9. Truck sales or rental	N	N	N	N	N	N	N	Y	BA	N	N	N	N	N	F
10. Heavy equipment sales or rental	N	N	N	N	N	N	N	Y	BA	N	N	N	Y	Y	F
11. Boat marina and supply sales	CC	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	F

ZONING

	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. MISCELLANEOUS COMMERCIAL USES															
1. Blueprinting, photostating, or custom printing	N	N	N	N	N	N	Y	Y	Y	Y	N	Y	Y	Y	E
2. Business machine and equipment repair service	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	Y	E
3. Catering service	N	N	N	N	N	N	N	BA	BA	BA	N	N	Y	Y	F
4. Commercial parking lot or structures	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	N	None
5. Contractors	N	N	N	N	N	N	N	N	N	N	N	N	N	Y	None
6. Delivery service and/or parcel post	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	Y	E
7. Dry-cleaning and/or linen supply processing plant	N	N	N	N	N	N	N	BA	BA	N	N	N	Y	Y	D
8. Dry-cleaning pickup station	N	N	N	N	N	N	Y	Y	Y	Y	N	Y	Y	Y	C
9. Dry-cleaning pickup station and processing facility not to exceed 4,000 square feet gross floor area	N	N	N	N	N	N	BA	BA	BA	BA	N	BA	BA	BA	C
10. Fuel distributor	N	N	N	N	N	N	N	Y	Y	N	N	N	Y	N	E
11. Fuel storage tanks (aboveground) for fuel distribution	N	N	N	N	N	N	N	BA	BA	N	N	N	BA	N	E
12. Funeral home or establishment	N	N	N	N	BA	BA	N	Y	Y	Y	N	N	N	N	D
13. Home-improvement contractor, cabinet maker, kitchen or bathroom equipment sales, electrical or plumbing shop (with no outdoor storage)	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	Y	E
14. Home-improvement contractor, cabinet maker, kitchen or bathroom equipment sales, electrical or plumbing shop (with outdoor storage)	N	N	N	N	N	N	N	BA	BA	N	N	N	Y	N	E
15. Hotel or motel	N	N	N	N	N	N	N	CC	CC	CC	N	CC	CC	CC	J
16. Janitorial service firm	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	F .
17. Landscaping service company	N	N	N	N	N	N	N	Y	Y	Y	N	N	N	N	E
18. Landscaping/snow plowing	N	N	N	N	N	N	N	N	N	N	N	N	N	Y	None
19. Professional and/or business schools for profit (includes dance, music, art, other professional and/or business schools)	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	I
20. Trade school, for profit	N	N	N	N	N	N	N	N	N	Y	N	N	Y	Y	I
21. Animal day clinic	N	N	N	N	N	N	N	BA	N	N	N	Y	Y	N	D

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	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
I. MISCELLANEOUS COMMERCIAL USES (cont'd)															
22. Kennel or veterinary hospital in which all animals, fowl or other forms of life are completely enclosed in pens or other structures	BA	BA	N	N	N	N	N	BA	N	N	N	N	N	N	D
23. Commercial communications and/or television tower, provided that it shall be at least 500 feet from any R District	BA	N	N	N	N	N	N	BA	BA	BA	N	BA	BA	BA	None
24. Mixed use	N	N	N	N	N	N	CC	CC	CC	CC	N	N	N	N	N

ZONING

	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
J. WHOLESALE, TRANSPORTATION, INDUSTRIAL USES															
1. Removal of sand, gravel, quarry or other raw material	N	CC	N	N	N	N	N	N	N	N	N	N	N	CC	O
2. Low level radioactive waste disposal and/or treatment facility	N	N	N	N	N	N	N	N	N	N	N	N	N	N	
3. Processing and treating of raw materials, including operations appurtenant to the taking, grading, drying, sorting, crushing, grinding and milling operations	N	N	N	N	N	N	N	N	N	N	N	N	N	CC	O
4. Construction industry, including suppliers	N	N	N	N	N	N	N	BA	N	N	N	N	Y	Y	O
5. Manufacturing, assembling and/or processing of manufactured products	N	N	N	N	N	N	N	Y	N	BA	N	N	Y	Y	O
6. Laboratory for research and development work or establishment engaged in specialized manufacturing, and uses accessory thereto, provided that all activities shall be conducted within enclosed structures	N	N	N	N	N	N	N	N	N	N	N	N	N	Y	O
7. Corporate headquarters or research center	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	Y	O
8. Bakery plant	N	N	N	N	N	N	N	N	N	BA	N	N	Y	Y	O
9. Railroad yard and railway express service	N	N	N	N	N	N	N	N	N	Y	N	N	Y	Y	F
10. Truck terminal, motor freight terminal, warehousing	N	N	N	N	N	N	N	BA	N	N	N	N	Y	Y	O
11. Interstate truck terminal	N	N	N	N	N	N	N	N	N	N	N	N	N	BA	O
12. Bus or railroad passenger terminal	N	N	N	N	N	N	N	Y	Y	Y	N	N	Y	N	B
13. Airport or heliport	N	N	N	N	N	N	N	CC	CC	N	N	CC	CC	CC	B
14. Other transportation service	N	N	N	N	N	N	N	BA	BA	BA	N	BA	BA	N	B
15. Wholesale operation	N	N	N	N	N	N	N	Y	Y	Y	N	BA	Y	Y	F
16. Mini- or self-storage warehouse	N	N	N	N	N	N	N	BA	N	N	N	N	BA	BA	G

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	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
J. WHOLESALE, TRANSPORTATION, INDUSTRIAL USES (cont'd)															
17. Open storage of raw materials, furnished goods or construction equipment and structures for storing such equipment, provided that it shall be screened from outside view and all entrances shall have a solid gate at least 6 feet in height	N	N	N	N	N	N	N	N	N	N	N	N	BA	BA	None
18. Junkyard, provided that it is enclosed by a 6-foot masonry wall with solid gates and no repair or storage is carried on outside such wall	N	N	N	N	N	N	N	N	N	N	N	N	BA	N	Z
19. Hazardous waste treatment, disposal and/or storage facility as defined under Massachusetts Department of Environmental Quality Engineering (Protection) Hazardous Waste Regulations 310 CMR 30.00 et seq. shall not be permitted as a sole and principal use	N	N	N	N	N	N	N	N	N	N	N	N	N	N	—
20. Warehouse	N	N	N	N	N	N	N	BA	N	N	N	N	Y	Y	O
21. Data Center	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N

ZONING

K. ACCESSORY USES	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
1. Accessory apartment	BA	BA	BA	BA	BA	BA	BA	N	N	N	N	N	N	N	J
2. Accessory dwelling unit in a commercial or industrial area for a caretaker or resident employee	N	N	N	N	N	N	N	Y	Y	Y	Y	Y	Y	Y	None
3. Home occupation	BA	BA	BA	BA	BA	BA	Y	Y	Y	N	N	N	N	N	D
4. Family day-care home, small	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
5. Family day-care home, large	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	NY	BA	BA	BA	None
6. Adult day-care home	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	None
7. Accessory activities of corporate headquarters, research facility, office, utility company, printing operation, motor vehicle repair or service, but no outdoor storage	N	N	N	N	N	N	N	Y	Y	Y	N	Y	BA	Y	None
8. Accessory building such as a private garage, playhouse, greenhouse, toolshed or similar accessory structures, subject to provisions of Section 4.0	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	None
9. Accessory swimming pool, subject to provisions of Section 4.0	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	None
10. Accessory private garage for not more than 3 noncommercial motor vehicles and, except on a farm, not more than 2-ton rated or less in size commercial motor vehicle	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
11. Accessory storage of commercial vehicle, exceeding 24 feet in length or 2-ton rating	N	N	N	N	N	N	Y	Y	Y	Y	N	Y	Y	Y	None
12. Accessory storage, see section 3.2.2.2 a. and b. for limitations , of + trailer for or + unregistered automobile or boat, provided such shall either be stored within a principal or accessory building or behind the building line within the side or rear yards and shall not be used for dwelling or sleeping purposes	NY	NY	NY	NY	NY	NY	Y	Y	Y	Y	Y	Y	Y	Y	None

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K. ACCESSORY USES (cont'd)	RS	RR	RL	RM	RH	RU	CN	CH	CG	CC	CM	OP	BG	BP	PC
13. A trailer or mobile home for each contractor or subcontractor for temporary use on a construction site subject to Section 3.2.2.1	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
14. Temporary mobile home subject to Section 3.2.2.3	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	J
15. Wall, fence or similar man-made enclosure without the use of barbed or razor wire, provided that it be:															
A. Not more than 6 feet in height	Y	Y	Y	Y	Y	Y	N	N	N	N	N	N	N	N	None
B. Not more than 10 feet in height, provided that nonresidential use shall limit such enclosures to not more than 6 feet in height except by special permit	N	N	N	N	N	N	Y	Y	Y	Y	N	Y	Y	Y	None
16. Up to 3 lodgers or boarders in an existing dwelling, provided that the exterior of the structure is not altered	N	N	N	N	BA	BA	Y	Y	Y	Y	N	N	N	N	M
17. Accessory telephone answering service, provided that there is no exterior alteration that would serve to change the character of the structure and it does not occupy more than 25% of the gross floor area	BA	BA	BA	BA	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
18. Accessory retail or wholesale business activity selling products produced in part or in whole on the premises, provided that such activity does not occupy more than 25% of the gross floor area	N	N	N	N	N	N	N	N	N	Y	N	BA	Y	Y	None
19. Accessory keeping of birds or animals as domestic pets, subject to approval by the Board of Health	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	None
20. Any accessory activities necessary in connection with scientific research or scientific development or related productions	BA	BA	BA	BA	BA	BA	BA	BA	BA	BA	Y	BA	BA	BA	None
21. (Reserved)															
22. Storage containers and structures,	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	None

ZONING

subject to compliance with § 3.2.4

Notes to Use Table

- A. With the exception of Interstate Route 495, no automobile service station shall be built within a 500-foot radius of the property line of an already existing automobile service station. On Interstate Route 495, no automobile service station shall be built within 500 feet of the property line of an already existing automobile service station on the same side of the highway.
- B. Trailers shall be prohibited in any district, except as provided for in this item.
- C. Access from any R ~~or S~~ Zoning District to an existing roadway which must pass through or into any other R ~~or S~~ Zoning or through any C ~~or H~~ District is permitted.
- D. Access from any ~~H or C~~ Zoning District to an existing roadway which must pass through or into any other ~~H or C~~ Zoning District is permitted.
- E. Access from any ~~H or C~~ Zoning District to an existing roadway which must pass through an R ~~or S~~ Zoning District may be permitted by a special permit issued by the Board of Appeals.
- F. Over three coin-operated machines, as defined in Chapter 104 of the Code, in any establishment other than bars, clubs and bowling alleys and skating rinks, constitute an amusement arcade (under the general category of amusement facility) allowed only in CH, CG, BG, and BP ⁽¹⁾ Zones throughout the City (except for the central business district as defined below where arcades shall not be allowed) which requires a special permit from the Board of Appeals. The sale and/or consumption of alcoholic beverages shall be prohibited in all amusement arcades. For the purpose of this section, the central business district is defined as that area enclosed by the following boundaries: Starting at the point of intersection of Mill Street and Ginty Boulevard southerly along the project center line of Mill Street to the Merrimack River floodwall; thence westerly along the floodwall to its intersection with the B & M railway line; thence northerly along the railway line to its intersection with the projected center line of Granite Street; thence northeasterly along the center lines of Granite Street and Locust Street to Walnut Street; thence southwesterly along the center line of Walnut Street to Bailey Boulevard; thence easterly along the center lines of Bailey Boulevard and Ginty Boulevard to the point of origin.
- G. Unless specifically exempted by the Building Inspector because of exceptional architectural design and/or site considerations, new single- and two-family structures shall be designed so that the principal facade, i.e., that facade containing the principal entrance (front door), shall be basically parallel to the front lot line.
- H. Once a principal facade has been established for any structure or building, whether existing or new, the area between such facade and the adjacent street or public approach to the structure or building shall not be built upon or used for an unattached building or structure in excess of 10 feet in height. This shall apply to the RU and RH Zoning areas only.
- I. For all mixed use buildings, parking shall be provided cumulatively for each use in the building.